

OREGON STATE HOSPITAL

POLICY

SECTION 8: Safety, Security, Emergency Management **POLICY: 8.019**

SUBJECT: Staff Response to Alleged Criminal Acts

POINT PERSON: Director of Security

APPROVED: Sara Walker, MD  **DATE: JANUARY 15, 2025**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☒ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

A. All Oregon State Hospital (OSH) employees are responsible for protecting patients and staff by reporting and responding to alleged criminal acts and observations of contraband being introduced into the organization. This policy applies to criminal acts or alleged criminal acts which occur at OSH or while a patient is committed to OSH.

B. This policy applies to all staff.

II. POLICY

A. All staff who observe or are notified of an alleged criminal act must report via the processes described in Procedures A and B of this policy and other policies as listed below.

1. OSH recognizes that many critical incidents may not rise to the level of a criminal act. Therefore, this policy should be read in conjunction with OSH Policy and Procedure 7.008, "Patient Abuse or Mistreatment Allegation Reporting."
2. Refer to OSH Policy and Procedure 6.016 "Sexual Activity involving Patients" and Procedures C for response to allegations of sexual abuse.
3. Refer to OSH Policy and Procedure 8.033, "Workplace Violence Prevention" for incidents of criminal acts in which the victim is a staff member.

4. Refer to OSH Policy and Procedure 1.003 "Incident reporting" for additional reporting requirements.
- C. OSH Security follows Protocol 5.005 "OSP Criminal Investigation Referrals" to report alleged criminal acts and coordinate investigations with Oregon State Police or relevant law enforcement agency.
- D. Incident Reporting Systems Investigation (IRSI) Department and Standards and Compliance may initiate systems investigations related to events that may qualify as an alleged criminal act as determined by Incident Review, Superintendent, or designee.
- E. OSH Security will coordinate with Law Enforcement Agencies to establish interview timelines. ISRI and Standards and Compliance must collaborate with OSH Security to schedule interviews. OSH Security shall collaborate with OTIS to establish interview timelines.
- F. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- G. Failure to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Acute care hospital" for the purposes of this policy refers to Salem Health hospital in Salem or Sacred Heart hospital in Riverbend.
- B. "Contraband" means any controlled substance, drugs not prescribed to the patient, drugs not prescribed or authorized by OSH, drug paraphernalia, weapons, unauthorized currency or prohibited items.
- C. "Criminal act" or "alleged criminal act" means an act or crime actually or allegedly committed by a person which violates a law and is punishable by the state or federal government. Such acts may include, but are not limited to, assault, vandalism, theft, threat to staff, supplying contraband into OSH, or suspicious activity on an OSH campus.
 1. An "alleged criminal act" should be considered to have occurred if:
 - a. a staff member has reasonable cause to believe a crime has been committed; or

- b. information has been reported to a staff member which, if true, would constitute a crime
- D. "Sexual abuse" is as defined by ORS 430.735(13). The definition of sexual abuse includes any incident which meets the definition of sexual assault, as well as incidents of non-consensual sexual behavior without sexual contact. An example of this includes but is not limited to exposing one's genitals to someone else without their consent. (If any sexual behavior occurs in which one party is a staff and the other is a patient, it is always considered assault or abuse, even if the patient asserts that they consented.)
- E. "Sexual assault" means an incident of sexual contact between patients, patient to staff, staff to patient or non-consensual staff to staff where criminal activity is alleged to have occurred as defined by Oregon Criminal Code, including, but not limited to, non-consensual sexual intercourse or penetration, and those acts involving an alleged victim who lacks capacity to consent to sexual contact. (If any sexual behavior occurs in which one party is a staff and the other is a patient, it is always considered assault or abuse, even if the patient asserts that they consented.)
- F. "Sexual contact" is defined by ORS 163.305 and means any touching of the sexual or other intimate parts of a person or causing such person to touch the sexual or other intimate parts of the actor for the purpose of arousing or gratifying the sexual desire of either party.
- G. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).
- H. Weapon means any item that can be used or modified to be used to harm the patient or others, including but not limited to guns, knives, improvised pointed or bladed instrument, and pepper spray.

IV. PROCEDURES

- Procedures A Response to Patient Disclosure of an Alleged Criminal Act
- Procedures B Response to a Reported Criminal Act
- Procedures C Response to Patient Sexual Assault

V. RELATED OSH POLICIES AND PROTOCOLS

- 1.003 Incident Reporting
- 6.005 Patient Death and Organ Donation
- 6.016 Sexual Activity Involving Patients

Subject: Staff Response to Alleged Criminal Acts and
Contraband

Policy Number: 8.019

Date: January 15, 2025

PAGE 4 OF 4

7.003 Photographing or Recording of Patients

7.008 Patient Abuse or Mistreatment Allegation Reporting

8.033 Workplace Violence Prevention

8.044 Contraband and Prohibited Items

VI. REFERENCES

Oregon Health Authority Policy. Disclosure of information, AS-100-03. Author.

Oregon Administrative Rule § 309-108-0000.

Oregon Administrative Rule §419-120-0000

Oregon Revised Statute § 162.135.

Oregon Revised Statute § 179.505.

Oregon Revised Statute §§ 124.050 — 124.095.

Oregon Revised Statute §§ 430.765 — 430.768.

Oregon Revised Statute §§ 419B.005 — 419B.050.

Oregon Revised Statute § 147.450.